



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

March 19, 2025

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 16492
(FOURTH REVISION)

EXPIRATION DATE:2028-11-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Construction Helicopters, Inc.
Howell, MI
FAA Certificate Number: JTAL383F (Part 133)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce in the U.S. only of certain hazardous materials by 14 CFR Part 133 Rotorcraft External Load Operations transporting hazardous materials attached to or suspended from an aircraft and 14 CFR Part 135 operations transporting hazardous materials on board an aircraft. Such transportation is in support of construction operations when the use of cranes or other lifting devices is impracticable or unavailable or when aircraft is the only means of transportation, without being subject to certain hazard communication requirements, quantity limitations, packaging and loading and storage requirements. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 172.101 Hazardous Materials Table Column (9B) in that rags, oily may be transported aboard cargo aircraft; § 172.101 Hazardous Materials Table Column (9B) in that the maximum quantity may be exceeded; Subpart C of Part 172 in that the shipping paper requirements are waived; §§ 172.301(c) and 172.302(c) in that each package need not be marked with the special permit number;

Tracking Number: 2024095053

§ 173.315(j)(1) in that storage containers must be charged to five percent of their capacity or less and intended for permanent installation on consumer premises and shipped by private motor carrier, except as specified herein; § 175.30 in that an alternative inspection method is authorized; and Part 173 in that certain packaging requirements are waived.

5. BASIS: This special permit is based on the application of Construction Helicopters, Inc. dated September 19, 2024, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
1,1,1,2-Tetrafluoroethane <i>or</i> Refrigerant gas R 134a	2.2	UN3159	N/A
Acetylene, dissolved	2.1	UN1001	N/A
Adhesives, <i>containing a flammable liquid</i>	3	UN1133	I, II, or III
Aerosols, <i>corrosive, Packing Group II or III, (each not exceeding 1 L capacity)</i>	2.2	UN1950	N/A
Aerosols, <i>flammable, (each not exceeding 1 L capacity)</i>	2.1	UN1950	N/A
Aerosols, <i>flammable, n.o.s. (engine starting fluid) (each not exceeding 1 L capacity)</i>	2.1	UN1950	N/A
Aerosols, <i>non-flammable, (each not exceeding 1 L capacity)</i>	2.2	UN1950	N/A
Air, compressed	2.2	UN1002	N/A
Alcoholic beverages	3	UN3065	II or III
Argon, <i>compressed</i>	2.2	UN1006	N/A
Aviation regulated liquid, n.o.s.	9	UN3334	N/A
Batteries, wet, filled with acid, electric storage	8	UN2794	N/A

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Batteries, wet, filled with alkali, electric storage	8	UN2795	N/A
Batteries, wet, non-spillable, electric storage	8	UN2800	N/A
Battery fluid, acid	8	UN2796	II
Battery fluid, alkali	8	UN2797	II
Battery-powered vehicle <i>or</i> Battery-powered equipment	9	UN3171	N/A
Combustible liquid, n.o.s.	Combustible	NA1993	III
Compressed gas, n.o.s.	2.2	UN1956	N/A
Corrosive liquid, basic, organic, n.o.s.	8	UN3267	I, II, or III
Corrosive liquids, toxic, n.o.s.	8	UN2922	I, II, or III
Diesel fuel	3	NA1993	III
Diesel fuel	3	UN1202	III
Diethylenetriamine	8	UN2079	II
Engines, internal combustion, <i>or</i> Engines, fuel cell, <i>flammable gas powered</i>	2.1	UN3529	N/A
Engines, internal combustion, <i>or</i> Engines, fuel cell, <i>flammable liquid powered</i>	3	UN3528	N/A
Environmentally hazardous substances, liquid, n.o.s.	9	UN3082	III
Ethyl methyl ketone <i>or</i> Methyl ethyl ketone	3	UN1193	II
Fire extinguishers <i>containing compressed or liquefied gas</i>	2.2	UN1044	N/A

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Flammable liquids, n.o.s.	3	UN1993	I, II, or III
Fuel oil (No. 1, 2, 4, 5, or 6)	3	NA1993	III
Fuel, aviation, turbine engine	3	UN1863	I, II, or III
Gasoline	3	UN1203	II
Isopropanol or Isopropyl alcohol	3	UN1219	II
Kerosene	3	UN1223	III
Lighters containing flammable gas	2.1	UN1057	N/A
Lighter refills containing flammable gas not exceeding 4 fluid ounces (7.22 cubic inches) and 65 grams of flammable gas	2.1	UN1057	N/A
Lithium ion batteries packed with equipment*	9	UN3481	N/A
Lithium metal batteries packed with equipment*	9	UN3091	N/A
Lithium ion batteries, contained in equipment*	9	UN3481	N/A
Lithium metal batteries, contained in equipment*	9	UN3091	N/A
Lithium ion batteries*	9	UN3480	N/A
Lithium metal batteries*	9	UN3090	N/A
Nitrogen, compressed	2.2	UN1066	N/A
Oxygen, compressed	2.2	UN1072	N/A
Paint including paint, lacquer, enamel, stain, shellac solutions, varnish, polish, liquid filler, and liquid lacquer base	3	UN1263	I, II, or III

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Paint <i>or</i> Paint related material	8	UN3066	II or III
Paint related material <i>including paint thinning, drying, removing, or reducing compound</i>	3	UN1263	I, II, or III
Petroleum distillates, n.o.s. <i>or</i> Petroleum products, n.o.s.	3	UN1268	I, II, or III
Petroleum gases, liquefied <i>or</i> Liquefied petroleum gas	2.1	UN1075	N/A
Petroleum oil	3	NA1270	I, II, or III
Propane <i>see also</i> Petroleum gases, liquefied	2.1	UN1978	N/A
Rags, oily	4.2	UN1856	III
Vehicle, flammable gas powered <i>or</i> Vehicle, fuel cell, flammable gas powered	9	UN3166	N/A
Vehicle, flammable liquid powered <i>or</i> Vehicle, fuel cell, flammable liquid powered	9	UN3166	N/A

*A lithium battery, including a lithium battery packed with or contained in equipment, with a mass exceeding 35 kg may not be transported under the terms of this special permit unless the offeror (shipper) holds an approval in accordance with § 172.102(c)(2), Special Provision A54.

7. SAFETY CONTROL MEASURES:

a. PACKAGING:

(1) For propane and petroleum gases, liquefied, prescribed packagings must comply with Subpart B of Part 173 and § 173.315(j)(1)(i) and (ii). Valves or other fittings must be adequately protected against damage during transportation. The requirements in § 173.315(j)(1) that storage containers must be charged to five percent of their capacity or less and must be intended for permanent installation on consumer premises and shipped by private motor carrier are waived.

(2) For all other hazardous materials authorized under the terms of this special permit, prescribed packaging is the manufacturer's original packaging or a packaging of equal or greater strength and integrity. Compatibility and effectiveness of all packaging must, at a minimum, meet the requirements of 49 CFR 173.24.

b. OPERATIONAL CONTROLS:

(1) Prior to attaching or suspending storage containers of propane and petroleum gases, liquefied packaged in accordance with paragraph 7.a.(1) above from an aircraft, each storage container must be inspected by a trained and qualified person for leaks, corroded or abraded areas, dents, distortions, weld defects, or other conditions that may render the container or package unsafe for transportation.

(2) For propane and petroleum gases, liquefied packaged in accordance with paragraph 7.a.(1) above, a maximum of two full containers or four empty containers may be attached to or suspended from an aircraft at one time under the terms of this special permit. For containers with a capacity exceeding 1,000 gallons, no more than a single container may be attached to or suspended from an aircraft at one time.

(3) Aerosols and compressed gases must be secured in an upright position with protective caps and/or covers installed to prevent any unwanted discharge.

(4) Compressed gases must be packaged and conform to Subpart G of Part 173 (see paragraph 7.a.(1) for additional authorized packagings for propane and petroleum gases, liquefied).

(5) Cylinders must be secured in such a manner that prevents the cylinder from movement during transportation. The cylinder neck/valve must be protected by the use of safety caps or collars. At no time shall the safety caps or collars be used as a lifting point.

(6) All batteries packed in equipment must be packed in a manner that prevents accidental activation or dangerous evolution of heat. Spare batteries or batteries pack with equipment must have their terminals insulated or protected to prevent short circuits and prevent a dangerous evolution of heat.

(7) Liquid fueled or gasoline powered equipment may be filled to not more than 80% of their capacity to allow for expansion due to altitude changes.

(8) All lithium batteries packed with equipment, or contained in equipment, must be packed in such a manner as to prevent short circuits, including movement

that could lead to short circuits. They must be equipped with an effective means to prevent dangerous reverse current flow (e.g., diodes, fuses, etc.) if a battery contains cells or series of cells that are connected in parallel.

(9) Division 4.2 materials must be transported in sealed containers to prevent any spontaneous combustion.

(10) Hazardous materials that are capable of reacting dangerously with each other may not be placed next to each other or in a position that would allow a dangerous interaction in the event of leakage. The Segregation Table in § 175.78 must be used.

(11) Crew notification must be conducted prior to each operation conducted under the terms of this special permit. The crew must be notified of the type and quantities of hazardous materials to be transported under the terms of this special permit.

(12) The public must be excluded by local authorities and emergency responders must be notified in advance of each operation conducted under the terms of this special permit.

(13) Each operation conducted under the terms of this special permit is only authorized in the U.S. and only:

(i) In support of construction operations when the use of cranes or other lifting devices is impracticable or unavailable; or

(ii) When aircraft is the only means of transportation.

(14) All packages must be blocked and braced to prevent movement.

(15) Hazardous materials transported must comply with the safety controls specified in this special permit.

(16) The safe operational weight limit of the aircraft may not be exceeded.

(17) Alternative pilot-in-command notification procedures for 49 CFR Part 175.33, may be established subject to the written approval of the FAA Office of Hazardous Materials Safety.

8. SPECIAL PROVISIONS:

- a. The requirements for shipping papers in Subpart C of Part 172 are waived.
- b. Each package must be properly marked and labeled for the hazardous materials contained within.
- c. The marking requirements of 49 CFR 172.301(c) and 172.302(c) are waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Rotorcraft External Load Operations and Cargo-only aircraft.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft used to transport packages covered by this special permit.

- a. Authorized aircraft. Aircraft used under this special permit must be authorized as part of an FAA 14 CFR Part 133 or 135 Operating Certificate.
- b. Operations manual. FAA 14 CFR Part 133 or 135 operations must be conducted in accordance with conditions and limitations specified in the certificate holder's FAA-approved Rotorcraft Load Combination Flight Manual (RLCFM) and Hazardous Material Safety Mitigation Plan.
- c. Authorized persons aboard aircraft. No person may be carried on the aircraft other than as authorized by 14 CFR 133.35.
- d. Operations under the terms of this special permit must be conducted in accordance with the Congested Area Plan (when applicable) approved by the FAA.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) — “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. **REPORTING REQUIREMENTS:** Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

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